

		(b) Supporting declaration A separate declaration must accompany the motion and must specify: (1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier. Cal. R. Ct. 3.1324. Plaintiff's motion for leave to amend the complaint to add a PAGA cause of action and a cause of action for violation of section 246 complies with Rule 3.1324. ROA 182, 187. Defendant did not file an opposition and thus has not identified any reasons the motion should not be granted or any prejudice from permitting this amendment at this juncture. As to plaintiff's "supplemental" brief, which is actually a second motion for leave to amend, plaintiff did not comply with Rule 3.1324. Plaintiff has not "[s]tate[d] what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located," and plaintiff's counsel does not state in her "supplemental" declaration when the facts giving rise to the amended allegations were discovered or the reasons why the request for amendment was not made earlier. Cal. R. Ct. 3.1324(a)(3), (b)(3), (b)(4). In addition, the redlined copy of the proposed amended complaint attached to the Supplemental Faccin Declaration (ROA 202, Ex. 1) does not mention proposed new plaintiff Sergio Santana at all, and the clean copy of the proposed amended complaint attached to the Supplemental Faccin Declaration (ROA 202, Ex. 2) adds Santana's name in the case caption but does not appear to mention him anywhere in the pleading. Accordingly, plaintiff's motion for leave to file an amended complaint naming Sergio Santana as a plaintiff is denied. Plaintiff to give notice and to file and serve by September 24, 2026 a copy of the first amended complaint attached as Exhibit 2 to the June 3, 2026 Faccin Declaration (ROA 187).
14	Varela v. American Addiction Centers, Inc. 2023-01366691	Off calendar.